

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, August 10, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-01155	Estate of Devonea Graham, et al. vs County of Merced, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address status of dismissal of this matter pursuant to the settlement agreement.

24CV-00168	Salvador Jimenez, et al. vs Sonia Allen, et al.
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Motion to Compel Defendant Sonia M. Allen to Appear at Deposition and Produce Documents

Continued to August 26, 2026, at 8:15 a.m. in Courtroom 8. The motion to compel Defendant Allen's deposition is to be heard concurrently with Defendant's motion for protective order regarding Defendant Allen's deposition.

Motion to Compel Defendant Sonia M. Allen's Responses to Plaintiffs' Special Interrogatories, Set Two

Plaintiff's motion to compel further responses to Special Interrogatories, Set Two, Nos. 38 to 59 is GRANTED.

Although Plaintiff's separate statement is incomplete and not properly formatted (See Rules of Court, rule 3.1345), the Court in its discretion considered Plaintiff's motion.

In opposition, Defendant states they provided objection-only responses due to Defendant Allen's lack of mental capacity. Defendant Allen's lack of mental capacity does not create a general exemption from discovery obligations. Every litigant has a legal obligation to comply with the Civil Discovery Act.

If Defendant's counsel is to maintain that Defendant Allen is unable to participate in litigation due to her lack of mental capacity, then pursuant to Code of Civil Procedure sections 372 and 373, counsel must apply for a guardian ad litem to be appointed on her behalf. The guardian would then have the ability to comply with discovery obligations.

Defendant is to provide further code-compliant verified responses to Special Interrogatories, Set Two, Nos. 38 to 59 within thirty (30) days of this court's order.

The request for monetary sanctions is DENIED. Both parties were substantially justified in bringing and opposing the motion to compel further responses.

An OSC re: Discovery Compliance is set for August 26, 2026, at 8:15 a.m. in Courtroom 8.

Motion to Compel Defendant Sonia M. Allen's Responses to Plaintiffs' Request for Production of Documents, Set Two

Plaintiff's motion to compel further responses to Requests for Production, Set Two, Nos. 47 to 58 is GRANTED.

Although Plaintiff's separate statement is incomplete and not properly formatted (See Rules of Court, rule 3.1345), the Court in its discretion considered Plaintiff's motion.

In opposition, Defendant states they provided objection only responses due to Defendant Allen's lack of mental capacity. Defendant Allen's lack of mental capacity does not create a general exemption from discovery obligations. Every litigant has a legal obligation to comply with the Civil Discovery Act.

If Defendant's counsel is to maintain Defendant Allen is unable to participate in litigation due to her lack of mental capacity, then pursuant to Code of Civil Procedure sections 372 and 373, counsel must apply for a guardian ad litem to be appointed on her behalf. The guardian would then have the ability to comply with discovery obligations.

Defendant is to provide further code-compliant verified responses to Requests for Production, Set Two, Nos. 47 to 58 within thirty (30) days of this court's order.

The request for monetary sanctions is DENIED. Both parties were substantially justified in bringing and opposing the motion to compel further responses.

An OSC re: Discovery Compliance is set for August 26, 2026, at 8:15 a.m. in Courtroom 8.
